365 Yachts, LLC
Mutual Non-Disclosure & Non-Compete Agreement

1. Parties

Company: 365 Yachts Inc., Shelly Melcher, CoFounder/Employing Broker, and

Broker Name: _____, Collectively, "**the Parties**"

2. Effective Date
Begins on the date both parties sign.

3. Confidential Information
"Confidential Information" means all non-public information belonging to the Company, including but not limited to:

- Client & Deal Data: vessel listings, client lists, contact details, financial docs, pricing, marketing strategies, commission structures, and deal terms.
- Company Systems & Apps: proprietary platforms (including 365YachtMatch.com), CRM tools, scripts, and automations.
- Workflows & Processes: training, playbooks, checklists, reporting methods, sales systems.
- Partnerships & Business Development: referral programs, vendor agreements, off-market sources, collaborations, investor discussions.
- Internal Communications & Strategies: emails, calls, and discussions about company business, staffing, or deals.

4. Confidentiality Obligations
Both Parties agree to:

- Protect all Confidential Information with reasonable care.
- Use it solely for legitimate business with the Company.
- Share only on a "need-to-know" basis.
- Not copy, replicate, or reverse engineer Company apps, systems, or strategies.
- Return or destroy Confidential Information upon termination.
- Report immediately any unauthorized use, disclosure, or breach.

5. Non-Compete & Non-Solicitation

- **Duration:** 12 months after leaving the Company.
- **Geographic Scope:** Florida counties where you worked for the Company, plus any other regions (domestic or international) where you did business or had client contact for the Company.
- **Permitted:** You may work as a yacht broker elsewhere after leaving, as long as you do not use the Company's Confidential Information or relationships.
- **Restricted:** You may not:
    1. Use or share Company Confidential Information.
    2. Contact or solicit any Company client, prospect, or referral source you met through the Company.
    3. Divert business opportunities found while with the Company.

6. Governing Law
This Agreement follows Florida law. Disputes will be handled in Palm Beach County, Florida.

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By signing below, Broker acknowledges they have read, understood, and agree to be bound by the terms of this Agreement in full.

365 Yachts, LLC	**Broker**
By: **Shelly Melcher**, License Holder	By:_____
Signature:_____	Signature:_____
Date: _____	Date: _____